

COURSE: IDEOLOGY AND CONSTITUTION OF PAKISTAN

1. INTRODUCTION TO THE IDEOLOGY OF PAKISTAN

Definition and Significance of Ideology

“Ideology refers to a system of beliefs, values, and ideas that shape an individual's or a group's perspective on various aspects of life, including politics, culture, and morality.” Here are some key points regarding the significance of ideology:

- ❖ **Providing Direction:** Ideology gives people a sense of direction in life. It offers a roadmap for how to think and act in different situations.
- ❖ **Political Decision Making:** Ideology helps individuals and leaders make political decisions. It guides choices on policies, laws, and government actions.
- ❖ **Unity and Identity:** Ideology brings like-minded people together. It helps form a sense of identity and belonging within a group.
- ❖ **Conflict Resolution:** Ideological understanding can help resolve conflicts. It allows people to find common ground and work together.
- ❖ **Cultural Preservation:** Ideology plays a role in preserving cultural values and traditions. It safeguards a community's heritage and way of life.
- ❖ **Shaping History:** Ideological movements have shaped important events in history. They can spark revolutions, social change, and progress.
- ❖ **Economic Framework:** Ideology influences economic systems and policies. It determines how resources are distributed and businesses are regulated.
- ❖ **Personal Values:** Ideology influences personal values and beliefs. It guides individual choices and moral decisions.
- ❖ **Ethical Compass:** Ideology often includes moral and ethical principles. It helps people distinguish right from wrong.
- ❖ **Adaptability and Progress:** Ideologies can evolve over time. Societies adapt their beliefs to address new challenges and opportunities.

In simple terms, ideology is important because it gives people a sense of purpose and guides their decisions in various aspects of life, from politics to culture. It can foster unity, resolve conflicts, shape history, influence economic systems, and guide personal values and ethics. Ideology helps individuals and societies adapt and progress in a changing world.

Historical Context of the Creation of Pakistan with Emphasis on Social-Political, Religious and Cultural Dynamics of British India between 1857 Till 1947

The creation of Pakistan in 1947 was a major event in the history of British India. The historical context of this period can be examined through these key dynamics:

1. Social Dynamics:

- **Religious Diversity:** British India was characterized by its vast religious diversity, with Hinduism, Islam, Sikhism, Buddhism, and various other faiths coexisting for centuries. The majority of the population was Hindu, while Muslims formed a significant minority.
- **Caste System:** The rigid caste system of Hindu society created social inequalities. The colonial administration recognized the importance of caste in Indian society and often exploited it for administrative purposes.
- **Social Reform Movements:** The 19th century witnessed the emergence of social reform movements such as the Brahmo Samaj and Arya Samaj, which sought to address issues like child marriage, sati (widow immolation), and promote education and rationalism.

2. Political Dynamics:

- **British Colonial Rule:** Following the Indian Rebellion of 1857 (also known as the Indian Mutiny), the British Crown assumed direct control over India, leading to the period known as the British Raj. The British colonial administration wanted to strengthen its authority over the subcontinent.
- **Indian Nationalism:** The latter half of the 19th century and the early 20th century saw the rise of Indian nationalism. Leaders like Mahatma Gandhi, Jawaharlal Nehru, and Subhas Chandra Bose advocated for independence from British rule, employing various strategies such as nonviolent resistance and civil disobedience.
- **Communalism and Two-Nation Theory:** The communal divide between Hindus and Muslims became more and more prominent. The All-India Muslim League, led by Muhammad Ali Jinnah, began advocating for the rights and representation of Muslims, emphasizing the Two-Nation Theory, which proposed that Hindus and Muslims were distinct nations.

- **Partition of Bengal:** The British government's decision to partition Bengal in 1905 for administrative purposes fueled communal tensions. The partition was met with mass protests and was eventually reversed in 1911.

3. Religious Dynamics:

- **Communal Divide and Conflicts:** Communalism and religious divisions between Hindus and Muslims became a significant challenge. Religious tensions occasionally break out into violence, with significant riots and clashes in places like Calcutta and Amritsar.
- **Role of Religion in Identity:** Religion played a central role in shaping identity and political affiliations. The notion of separate electorates was introduced for religious communities, deepening the divide.

4. Cultural Dynamics:

- **Language and Culture:** Language played a crucial role in cultural and identity politics. The Hindi-Urdu controversy, which revolved around the script and language, demonstrated the complexities of language as a symbol of identity.
- **Literature and Art:** Despite the political chaos, this period also witnessed the flourishing of literature, art, and cultural expressions. The Indian subcontinent has a rich and diverse cultural heritage that found expression in literature, music, and the arts.

In this multifaceted context, the demand for a separate Muslim state, Pakistan, gathered momentum. The significant political, cultural, and religious differences between Hindus and Muslims, coupled with the quest for self-determination and representation, led to the creation of Pakistan in 1947. This partition resulted in one of the largest migrations in history and was accompanied by communal violence, leaving a lasting impact on the subcontinent's social, political, and cultural fabric.

Contribution of Founding Fathers of Pakistan in the Freedom Movement

The founding fathers of Pakistan were instrumental in the freedom movement that led to the creation of Pakistan in 1947. Their contributions encompassed a wide range of roles, from political leadership and advocacy to intellectual and social influence. Here is an overview of the significant contributions of some of the key founding fathers:

Muhammad Ali Jinnah

Muhammad Ali Jinnah, often referred to as Quaid-e-Azam (Great Leader), played a pivotal and instrumental role in the freedom movement that led to the creation of Pakistan in 1947.

Leadership of the All-India Muslim League: Jinnah served as the leader of the All-India Muslim League from 1913 until Pakistan's independence in 1947. During his leadership, he transformed the Muslim League from a relatively minor political entity into a powerful and organized political force advocating for the rights and interests of Muslims in British India.

Advocate for Muslim Rights: He was a staunch advocate for the political and economic rights of Muslims within the subcontinent, emphasizing the need for Muslim representation and safeguards.

Negotiations with the British and the Congress: Jinnah engaged in negotiations with the British colonial rulers and the Indian National Congress to secure a better position for Muslims within a united India. When these negotiations failed to produce satisfactory results, Jinnah became a strong advocate for the creation of Pakistan.

Two-Nation Theory: Jinnah articulated and championed the Two-Nation Theory, which argued that Hindus and Muslims were distinct nations with separate cultural, social, and political identities. This theory laid the foundation for the demand for a separate Muslim state.

Lahore Resolution (1940): Jinnah played a pivotal role in the passage of the Lahore Resolution in 1940, which formally demanded the establishment of an independent Muslim state in the areas where Muslims were in the majority. This resolution is often seen as a significant milestone on the path to Pakistan's creation.

Formation of Pakistan: Jinnah's unwavering commitment to the cause of Pakistan and his remarkable leadership skills were instrumental in securing the creation of Pakistan in 1947. He became the first Governor-General of Pakistan and later the country's first President.

Allama Iqbal

Poetic Vision of a Separate Muslim State: Allama Iqbal is widely regarded as the "Spiritual Father of Pakistan." His poetry and philosophical writings conveyed a vision of a separate homeland for Muslims in the Indian subcontinent. His poetry and philosophical ideas emphasized the distinct cultural, social, and religious identity of Muslims in India and the need for a separate Muslim state.

Intellectual Leadership: Iqbal was not only a poet but also a philosopher, scholar, and thinker. His philosophical work, particularly his concept of the "Two-Nation Theory," which asserted that Hindus and Muslims in the Indian subcontinent were two separate nations with distinct identities, was instrumental in shaping the political discourse of the time and providing a foundation for the demand for Pakistan.

Presidential Address at the Allahabad Session (1930): Allama Iqbal delivered a historic presidential address at the All-India Muslim League session in Allahabad in 1930. In this address, he articulated the idea of a separate Muslim state and urged Muslims to unite for their political and economic rights. This address marked a turning point in the Pakistan Movement and provided a clear political direction for the demand for a separate Muslim state.

Educational Reforms: Iqbal was a strong advocate for educational and cultural reforms within the Muslim community. He believed that the revival of Islamic intellectual and cultural traditions was essential for the empowerment of Muslims. His efforts to promote education and cultural awareness contributed to the development of a sense of Muslim identity and self-reliance.

Sir Syed Ahmed Khan

Educational Reforms: Sir Syed Ahmed Khan recognized the importance of education in the socio-economic and political uplift of Muslims. He established a chain of schools, including Aligarh Muslim University, which aimed to provide modern, scientific, and Western-style education to Muslims. These institutions played a crucial role in producing a generation of educated Muslims who later became leaders of the freedom movement.

Promotion of Scientific Thought: Sir Syed was a strong advocate for the adoption of modern science and rational thinking among Muslims. He believed that a strong scientific foundation would enable Muslims to progress and compete in the modern world.

Social and Cultural Reforms: Sir Syed worked to reform and modernize various aspects of Muslim society. He encouraged Muslims to embrace modern technology, promote the use of the Urdu language, and adapt to changing social and cultural norms. His efforts were aimed at bridging the gap between traditional Islamic education and the demands of a changing world.

Aligarh Movement: Sir Syed's educational and social reforms were part of what is often referred to as the "Aligarh Movement." This movement encouraged Muslims to engage with modern ideas, learn about Western thought, and engage with modern institutions.

While Sir Syed Ahmed Khan's primary contributions were in the fields of education, social reform, and intellectual awakening, his efforts played a foundational role in preparing the Muslim community for the challenges of the freedom movement. The educational institutions he founded, such as Aligarh Muslim University, produced educated and politically aware individuals who later became leaders in the struggle for independence, including the demand for a separate Muslim state. His work helped create a sense of empowerment and modernization among Muslims in the Indian subcontinent, which contributed to the larger context of the freedom movement leading to the creation of Pakistan in 1947.

Liaquat Ali Khan

All-India Muslim League: Liaquat Ali Khan was an active member of the All-India Muslim League, the political party that led the demand for a separate Muslim state in the Indian subcontinent. He was a close associate of Muhammad Ali Jinnah, the leader of the Muslim League and the driving force behind the Pakistan Movement.

Close Advisor to Jinnah: Liaquat Ali Khan served as a trusted confidant and advisor to Muhammad Ali Jinnah. He played a crucial role in assisting Jinnah in shaping the political strategy of the Muslim League, especially during the critical years leading up to the creation of Pakistan.

Mobilizing Muslim Support: Liaquat Ali Khan was involved in rallying political and public support for the Muslim League's demand for Pakistan. He played a key role in organizing and coordinating political activities, campaigns, and negotiations on behalf of the Muslim League.

Fatima Jinnah

Fatima Jinnah, often referred to as Madar-e-Millat (Mother of the Nation), was the younger sister of Muhammad Ali Jinnah, the founder of Pakistan. While her role in the freedom movement for Pakistan was not as prominent as her brother's, she made significant contributions and played various roles in the struggle for Pakistan's independence. Here are some aspects of her involvement:

Support for Muhammad Ali Jinnah: Fatima Jinnah was a strong source of emotional and moral support for her brother, Muhammad Ali Jinnah, throughout his political career. She stood by him during the challenging times, providing unwavering encouragement.

Mobilization and Awareness: Fatima Jinnah used her position as the sister of Muhammad Ali Jinnah to mobilize public support for the Muslim League and its demand for a separate Muslim state. She participated in various public events and gatherings to raise awareness about the political issues facing Muslims in British India.

Women's Role in the Movement: Fatima Jinnah was an advocate for the role of women in the Pakistan Movement. She encouraged women to become politically aware and actively participate in the struggle for independence. She believed in the importance of women's rights and their role in the social and political development of Pakistan.

Allama Shabbir Ahmad Usmani:

Allama Shabbir Ahmad Usmani (1887-1949) was a prominent Islamic scholar, religious leader, and political figure who made significant contributions to the freedom movement for Pakistan.

Leadership in the Khilafat Movement: Allama Shabbir Ahmad Usmani was an active participant in the Khilafat Movement, which was a pan-Indian campaign initiated by Muslims to support the Ottoman Caliphate after World War I. The movement sought to protect the caliphate and Muslim interests.

Role in the All-India Muslim League: Allama Shabbir Ahmad Usmani was a member of the All-India Muslim League and actively participated in its political activities. He supported the League's demand for a separate Muslim state and played a vital role in mobilizing religious support.

Islamic Scholar and Preacher: Allama Shabbir Ahmad Usmani was a highly respected Islamic scholar and a prominent preacher. His religious influence and his ability to communicate effectively with the masses made him a significant figure in mobilizing Muslims in support of the Pakistan Movement. His sermons and speeches emphasized the importance of a separate Muslim state to protect the rights and identity of Muslims.

Efforts for Muslim Unity: Allama Shabbir Ahmad Usmani worked towards achieving unity among the Muslim leaders of the subcontinent, emphasizing the importance of Muslims coming together to pursue their common interests. He was active in promoting dialogue and cooperation between different Muslim political and religious groups.

Contribution of Women and Students in the Freedom Movement for Separate Homeland for the Muslims of British India

The freedom movement for the Muslims of British India was not just a male-dominated effort; women and students played vital and influential roles in the struggle for independence. Their contributions were multifaceted and instrumental in shaping the course of the freedom movement. Here are some key aspects of their participation:

Contributions of Women

Political Mobilization: Women in British India actively participated in the political activities and campaigns of the All-India Muslim League, the Indian National Congress, and other organizations advocating for independence. They attended meetings, rallies, and public gatherings to show their support for the cause of freedom.

Civil Disobedience and Protests: Many women engaged in acts of civil disobedience and protest against British colonial rule. They participated in movements like the Non-Cooperation Movement and the Quit India Movement, which were instrumental in India's struggle for independence.

Women's Organizations: Women formed their own organizations, such as the All-India Women's Conference and the All-India Muslim Women's Conference, to address issues related to women's rights, education, and social reform. These organizations advocated for women's participation in the political process.

Support for the Khilafat Movement: Many Muslim women actively supported the Khilafat Movement, a pan-Indian campaign to protect the Ottoman Caliphate, which was led by leaders

like Mahatma Gandhi and the Ali brothers. The Khilafat Movement demonstrated Muslim women's commitment to broader political and religious causes.

Contributions of Students

Political Awareness: Students in British India, both at the school and university levels, played a crucial role in spreading political awareness. They organized study circles, debates, and discussions on topics related to freedom and independence.

Mass Protests and Demonstrations: Students frequently participated in mass protests and demonstrations. One notable event was the Jallianwala Bagh Massacre in Amritsar in 1919, where students were among the victims and actively took part in protests against the British authorities.

Role in Non-Cooperation and Civil Disobedience: Students played a significant role in Mahatma Gandhi's Non-Cooperation Movement and Civil Disobedience Movement. They boycotted classes, marched in protests, and actively supported these campaigns.

Student Organizations: Student organizations, like the All India Students Federation (AISF), emerged as platforms for students to discuss political issues and coordinate their activities in support of independence.

Solidarity with Nationalist Movements: Students showed solidarity with various nationalist movements, both Muslim and non-Muslim, and often crossed religious and regional lines to support the broader cause of freedom.

The contributions of women and students in the freedom movement for Muslims in British India were integral to the larger struggle for independence. Their active involvement in politics, their advocacy for social reform and women's rights, and their role in raising awareness among the masses were essential in shaping the history of the subcontinent and eventually leading to the creation of Pakistan and India as independent nations in 1947.

2. TWO NATION THEORY

Evolution of Two Nation Theory

The Two-Nation Theory, a key concept in the creation of Pakistan, evolved through a series of historical events and factors, including the Hindu-Urdu controversy, the partition of Bengal, the Simla Deputation in 1906, Allama Iqbal's address in 1930, the Congress ministries in 1937, and the Lahore Resolution in 1940. Here's an overview of its evolution in light of these events:

Hindu-Urdu Controversy (1867-1905): The controversy over language and culture, particularly the differences between Hindus and Muslims regarding the use of the Urdu language, highlighted the growing communal tensions. Hindus favored the promotion of Hindi and the Devanagari script, while Muslims favored Urdu. This linguistic and cultural divide emphasized the distinct identities of the two communities.

Partition of Bengal (1905): The British decision to partition of Bengal into two provinces, West Bengal and East Bengal, was met with resistance. It was seen as an attempt to divide the Muslim-majority eastern region from the Hindu-majority western region. This move intensified communal sentiments and fueled the demand for separate representation and political safeguards for Muslims.

Simla Deputation (1906): The Simla Deputation was a significant event that marked the emergence of a distinct Muslim political identity. Muslim leaders from various regions of India presented their demands to the Viceroy, Lord Minto. They sought separate electorates, adequate representation for Muslims, and protection of their religious and cultural rights. This marked an important step toward the concept of separate Muslim political identity.

Allama Iqbal's Address (1930): Allama Iqbal's famous presidential address at the All-India Muslim League session in Allahabad in 1930 was a turning point. In this address, he expressed the idea of a separate Muslim state and the Two-Nation Theory, emphasizing the distinct cultural, social, and religious identities of Muslims and Hindus.

Congress Ministries (1937): The elections of 1937 resulted in the Indian National Congress forming ministries in several provinces. However, their policies and actions, particularly in some provinces, led to concerns among Muslims about their rights and interests. This further fueled the demand for separate electorates and separate representation for Muslims.

Lahore Resolution (1940): The Lahore Resolution, passed during the annual session of the All-India Muslim League in 1940, was a landmark event. It explicitly called for the creation of an independent Muslim state and the division of India into two separate nations. This resolution is often considered the formal adoption of the Two-Nation Theory, as it sought the establishment of a sovereign Muslim state based on the principle of separate electorates.

The evolution of the Two-Nation Theory was shaped by these and other significant events, which collectively highlighted the deepening communal divisions in British India. The Lahore Resolution, in particular, marked a decisive step toward the creation of Pakistan in 1947, as it laid the groundwork for a separate Muslim state in the Indian subcontinent.

Role of Communalism and Religious Differences

Communalism Definition: Communalism is when people prioritize their religious or communal identity over their national identity.

- ❖ **Growing Communal Divide:** Communalism led to increasing tensions and divisions between religious communities, primarily Hindus and Muslims.
- ❖ **Two-Nation Theory Emerges:** The Two-Nation Theory suggested that Hindus and Muslims were two separate nations with distinct interests and should have separate countries.
- ❖ **Communal Riots and Strife:** Communalism resulted in violent conflicts, like communal riots, between Hindus and Muslims, leading to fear and mistrust.
- ❖ **Political Demands for Separation:** Political leaders used communalism to demand separate nations, which eventually led to the creation of India and Pakistan in 1947.
- ❖ **Legacy of Communalism:** Communalism's impact continues to affect the region, contributing to religious tensions and conflicts.

In simple terms, communalism, which is the division of people based on their religious identities, played a crucial role in shaping the idea that Hindus and Muslims should have separate nations, ultimately resulting in the partition of India into India and Pakistan in 1947. This division continues to influence the region's dynamics.

Religious Differences

- ❖ **Religious Diversity:** India was home to people from various religious backgrounds, primarily Hindus and Muslims, but also Sikhs, Christians, Buddhists, and others.

- ❖ **Religious Identities:** Religious differences meant that people identified strongly with their respective faiths, often placing religious identity before their national identity.
- ❖ **Allama Iqbal's Influence:** The philosopher-poet Allama Iqbal, a key figure in the Two-Nation Theory, emphasized the distinct religious identities of Hindus and Muslims.
- ❖ **Separate Nations:** The theory argued that Hindus and Muslims were two separate nations with different religious, cultural, and social values.
- ❖ **Demand for Separate Nations:** The belief in these religious differences led to the demand for separate nations, ultimately resulting in the creation of India and Pakistan in 1947.
- ❖ **Partition:** The partition of India was the direct outcome of these religious differences, with Pakistan being established as a separate nation for Muslims.
- ❖ **Ongoing Tensions:** Religious differences continue to influence relations between India and Pakistan, contributing to political and social tensions.

In simple words, the religious differences between Hindus and Muslims in India played a crucial role in the Two-Nation Theory. This theory argued that because of these differences, Hindus and Muslims should have separate nations, leading to the partition of India into India and Pakistan in 1947. These religious divisions still impact the region today.

3. INTRODUCTION TO THE CONSTITUTION OF PAKISTAN

Definition of Constitution

"A constitution is a set of fundamental rules that determine how a country or state is run."

"The constitution is like a rulebook for a country. It has all the important rules and guidelines that everyone in the country must follow."

"A constitution is a fundamental and supreme set of laws and rules that establish the framework for a government, outlining its structure, powers, and the rights and responsibilities of its citizens. It serves as the guiding document for a country or organization, ensuring that it operates in an organized and just manner."

Importance of Constitution

Constitution is important because:

- **Sets the Rules:** The constitution tells us what we can and cannot do. It's like a playbook that everyone, including the government, follows.
- **Protects Rights:** It makes sure that our basic rights, like freedom of speech and the right to a fair trial, are protected. These are the rules that keep us safe and free.
- **Balances Power:** The constitution divides power among different parts of the government to prevent any one group from becoming too powerful. This is important for fairness and democracy.
- **Stability and Order:** It helps maintain stability and order in a country by providing a framework for how things work. This way, we know what to expect.
- **Adapts to Change:** The constitution can change over time to suit the needs of the country. This flexibility is crucial to keeping the rules relevant.

In summary, a constitution is like a rulebook that sets the basic rules, protects our rights, balances power, and helps maintain order in a country. It's important for a fair and functioning society.

Ideological Factors that shaped the Constitutions of Pakistan

Several ideological factors contributed to the formation of the Constitution of Pakistan. These are as follow:

- ❖ **Two-Nation Theory:** The belief that Muslims and Hindus were two separate nations with distinct cultural, religious, and social identities played a crucial role. It was the foundation for the demand for a separate Muslim state, which eventually became Pakistan.
- ❖ **Islamic Identity:** The desire to create a state where Muslims could practice their religion freely and in accordance with their beliefs was a significant driving factor. Pakistan aimed to be a place where Islamic values and principles were upheld.
- ❖ **Protection of Minority Rights:** The constitution aimed to protect the rights of religious and ethnic minorities living in Pakistan, ensuring their freedom to practice their customs and beliefs.
- ❖ **Social Justice:** The idea of creating a just and equitable society, where wealth and resources were distributed fairly among the citizens, was another key ideological factor.
- ❖ **Parliamentary Democracy:** The constitution embraced the concept of parliamentary democracy, where elected representatives would make decisions, reflecting the will of the people.

These ideological factors guided the framers of the Constitution of Pakistan in shaping a document that would reflect the unique needs and aspirations of the country's Muslim-majority population

Objective Resolution 1949

As Pakistan came into existence in the name of Islam. So there was popular demand for the implementation of Islamic way of life. For this purpose, the Objective Resolution was moved by first Prime Minister Liaquat Ali Khan on 7th March 1949 in the assembly and was approved by assembly on 12th March 1949.

The important features were as under:

1. The sovereignty belongs to God Almighty alone and the authority delegated by God is a sacred trust and the people of Pakistan will use it in the light of Holy Quran and Sunnah.

2. The principles of democracy, freedom, equality and social justice shall be fully observed in accordance with the principles of Islam.
3. The Muslims shall be enable to lead their lives according to the teachings of Islam.
4. Fundamental rights of the people will be fully protected.
5. The minorities shall be free to profess and practice their religions and promote their culture.
6. Independent judiciary shall be guaranteed.

The Objective Resolution was a landmark in the constitutional history of Pakistan because it laid down Islamic and democratic character of future constitution. The Objective Resolution was the first constitutional document that proved to be the foundation of the constitutional developments in Pakistan. The Objective Resolution is a basic and primary document of the constitutional history of Pakistan. It is a framework that provides mechanism to achieve goals for a better life of the people of Pakistan. The Resolution remained 'Preamble' of all the constitutions due to its importance.

Overview of Constitutional Developments in Pakistan

The constitutional development of Pakistan has evolved through various stages since its independence in 1947. Here is an overview of the key milestones in Pakistan's constitutional history:

- **1947-1956: Government of India Act, 1935:** Initially, Pakistan inherited the Government of India Act, 1935, as its interim constitution. The country operated under this act while working on its own constitution. In 1956, Pakistan adopted its first constitution.
- **1956-1958: First Constitution of Pakistan (1956):** Pakistan's first constitution was adopted on March 23, 1956. It established Pakistan as a federal parliamentary democracy within the Commonwealth. The constitution was short-lived, as it was abrogated in 1958 following a military coup.
- **1958-1971: Period of Martial Law:** Pakistan experienced several periods of military rule during this time, with generals Ayub Khan and Yahya Khan taking power.
- **1971-1973: Separation of East Pakistan and the 1973 Constitution:** After the creation of Bangladesh in 1971, Pakistan adopted its new constitution in 1973. This constitution provided for a federal parliamentary system and outlined the structure of the government.

- **1977-1988: Zia-ul-Haq's Martial Law:** General Zia-ul-Haq's coup in 1977 led to another period of military rule, during which he introduced several amendments to the 1973 Constitution to consolidate his power.
- **1985: Non-Party-Based Elections:** In 1985, non-party-based elections were held under General Zia's regime. This resulted in the formation of a government led by Muhammad Khan Junejo, with Zia remaining as the President.
- **1988-1999: Return to Civilian Rule and Period of Political Instability:** The death of General Zia in 1988 led to a return to civilian rule, marked by periods of political instability and changing governments.
- **1999-2008: Military Rule under General Pervez Musharraf:**
General Pervez Musharraf seized power in 1999. He introduced the Legal Framework Order in 2002, making several amendments to the Constitution
- **2008-Present: Restoration of Democracy and Constitutional Amendments:** Pakistan returned to democratic rule in 2008. The current 1973 Constitution has been amended several times to address various political and legal issues.

Throughout its history, Pakistan has experienced a mix of democratic and military rule, resulting in constitutional changes and amendments. The 1973 Constitution, with various amendments, continues to serve as the foundational document, outlining the structure of the government, the division of powers, and the fundamental rights of citizens. Constitutional development in Pakistan reflects the country's complex political history and the ongoing struggle to maintain a balance between civilian rule and military influence.

4. CONSTITUTION AND STATE STRUCTURE

Structure of Government of Pakistan (Executive, Legislature, Judiciary)

The government of Pakistan has a simple structure:

President:

- The President is the ceremonial head of state.
- They represent Pakistan internationally.

Prime Minister:

- The Prime Minister is the head of government.
- They lead the executive branch and run the country.

Parliament:

- The Parliament is made up of two houses: the National Assembly and the Senate.
- It makes and passes laws.

Provincial Governments:

- Pakistan has five provinces, each with its own government.
- These provincial governments manage local matters.

Judiciary:

- The judiciary, including the Supreme Court, interprets and upholds the law.

Military:

- The military plays a significant role in Pakistan's politics and security.

This is a simplified overview of the government structure in Pakistan.

EXECUTIVE

The executive branch of the government in Pakistan is responsible for running the country. Here's a simple explanation of its structure:

President: The President is the head of state, but their role is mostly ceremonial. They represent Pakistan internationally.

Prime Minister: The Prime Minister is the head of government. They lead the executive branch and make important decisions for the country.

Cabinet: The Cabinet is a group of ministers chosen by the Prime Minister. Each minister oversees a specific government department, such as finance or education.

Bureaucracy: The government bureaucracy, made up of civil servants, helps implement government policies and decisions.

In summary, the executive branch, led by the President and Prime Minister, along with the Cabinet and bureaucracy, is responsible for managing and running the government of Pakistan.

LEGISLATURE

The legislature in Pakistan is like a group of people who make the rules for the country. There are two parts:

National Assembly: It's made up of elected representatives from all over Pakistan. They talk about and decide on national rules and laws.

Senate: This is another group of representatives, but their job is to make sure the rules are fair for everyone, no matter where they live.

So, the legislature of Pakistan is like a big decision-making team that creates and approves the rules for the country. Functions of legislature are simple:

- **Make Laws:** The members in the legislature discuss and create new laws for the country.
- **Review Laws:** They also check and update existing laws if needed.
- **Represent People:** The people in the legislature represent the citizens and make sure the rules are fair and in the best interest of everyone.

In short, the legislature in Pakistan is responsible for creating and updating laws, making sure they're fair, and representing the people.

JUDICIARY

The judiciary in Pakistan is like a group of people who make sure that the rules and laws are followed correctly. Here's a simple explanation:

Supreme Court: This is the highest authority. It decides on the most important legal matters in the country.

Lower Courts: There are many other courts below the Supreme Court. They handle everyday legal cases and make sure that laws are followed.

Judges: Judges are like the referees of the legal system. They listen to both sides in a legal dispute and make fair decisions.

So, the judiciary in Pakistan is responsible for interpreting and applying the law to ensure justice and fairness.

Distribution of Powers between Federal and Provincial Governments

Federal Government's Powers

- **Foreign Affairs:** The federal government handles relations with other countries, such as making treaties and representing Pakistan internationally.
- **Defense:** It's responsible for the country's defense, including the military and national security.
- **Currency and Banking:** The authority over currency, banks, and the central bank (State Bank of Pakistan) belongs to the federal government.
- **Inter-Provincial Coordination:** It helps coordinate matters that involve multiple provinces, ensuring cooperation.

Provincial Government's Powers:

- **Education:** Provinces have control over their education systems, including schools and universities.
- **Healthcare:** Managing healthcare facilities and services, including hospitals, is a provincial responsibility.
- **Agriculture:** Provinces can make laws and regulations about agriculture within their boundaries.
- **Local Government:** They have authority over local matters like municipal services, urban planning, and local taxation.
- **Police:** The police force and law enforcement are mainly a provincial concern.

In summary, the federal government of Pakistan deals with national and international issues, defense, currency, and inter-provincial coordination, while provincial governments handle

education, healthcare, agriculture, local government, and police within their respective regions. This distribution of powers helps maintain a balance in governing the country.

18th Amendment

The 18th Amendment to the Constitution of Pakistan was a significant piece of legislation that was passed in April 2010. It introduced a range of changes to the Pakistani constitution, with a focus on devolving greater powers to the provinces and enhancing provincial autonomy. Here are some key aspects of the 18th Amendment:

Provincial Autonomy: The 18th Amendment aimed to give more power and independence to the provinces.

Transfer of Subjects: It shifted control of important areas like education and health from the central government to the provinces.

Renaming NWFP: The name of the North-West Frontier Province (NWFP) was changed to Khyber Pakhtunkhwa.

Fair Resources: The amendment ensured a fair distribution of financial resources among the provinces through the National Finance Commission (NFC) Award.

More Seats: The number of seats in provincial assemblies was increased to provide better representation.

Strengthened Coordination: It clarified and strengthened the role of the Council of Common Interests (CCI) for resolving disputes and coordinating policies between the federal and provincial governments.

In summary, the 18th Amendment focused on decentralizing power, promoting provincial autonomy, and enhancing the balance of authority in Pakistan's governance.

18th Amendment and its Impacts on Federalism in Pakistan

Impacts of 18th amendment on the federalism of Pakistan are as under:

Provincial Autonomy Enhanced: The 18th Amendment significantly increased the autonomy of Pakistan's provinces.

Devolution of Power: The amendment devolved more powers and responsibilities to the provinces, giving them greater control over their affairs.

Transfer of Subjects: Key subjects like education, health, and culture were shifted from federal to provincial control.

Financial Fairness: The National Finance Commission (NFC) Award was strengthened, ensuring a more equitable distribution of financial resources among the provinces.

Increased Representation: The number of seats in provincial assemblies was expanded to improve representation.

Stronger Coordination: The role and effectiveness of the Council of Common Interests (CCI) were enhanced for better coordination between federal and provincial governments.

In essence, the 18th Amendment promoted greater provincial autonomy, shared resources fairly, and improved the balance of power between the central and provincial governments in Pakistan.

5. FUNDAMENTAL RIGHTS, PRINCIPLES OF POLICY AND RESPONSIBILITIES

Overview of Fundamental Rights given by Constitution of Pakistan 1973 (Articles 8-28)

The Constitution of Pakistan, adopted in 1973, provides for a range of fundamental rights in Articles 8 to 28. These fundamental rights are essential for ensuring individual liberty, justice, and equality for all citizens of Pakistan. Here is an overview of some of the key fundamental rights granted by the Constitution of Pakistan:

- **Right to Fair Trial (Article 10):** Article 10 outlines the right to a fair trial. It includes the right to be informed of the charges and the right to legal representation.
- **Protection against Double Jeopardy (Article 13):** This article ensures that no person shall be prosecuted or punished for the same offense more than once.
- **Right to Privacy (Article 14):** This article protects the dignity and privacy of individuals and their homes. It prohibits the search of any premises without a warrant.
- **Freedom of Movement (Article 15):** This article guarantees the right to move freely throughout Pakistan, subject to reasonable restrictions in the interest of public order, dignity, or morality.
- **Freedom of Assembly (Article 16):** It ensures the right to assemble peacefully and without arms, subject to reasonable restrictions imposed by law.

- **Freedom of Association (Article 17):** This article guarantees the right to form associations, subject to reasonable restrictions in the interest of sovereignty or integrity of Pakistan, public order, or morality.
- **Freedom of Speech and Expression (Article 19):** Citizens have the right to freedom of speech and expression, including freedom of the press. However, this right is subject to reasonable restrictions imposed by law in the interest of the sovereignty and integrity of Pakistan, security of the state, friendly relations with foreign states, public order, dignity, or morality.
- **Right to Information (Article 19-A):** Article 19-A recognizes the right to access information held by public authorities, subject to reasonable restrictions.
- **Freedom of Religion (Article 20):** It guarantees freedom of religion, including the right to profess, practice, and propagate one's religion. However, this right is subject to public order, morality, and health.
- **Equality before the Law (Article 25):** This article ensures that all citizens are equal before the law and are entitled to equal protection of the law. It prohibits discrimination on the basis of race, religion, caste, sex, residence, or place of birth.
- **Right to Education (Article 25-A):** This article makes education a fundamental right for children between the ages of 5 and 16. The state is responsible for providing free and compulsory education to this age group.
- **Non-Discrimination (Article 27):** This article prohibits discrimination on grounds of religion, race, caste, sex, place of birth, or residence in access to public places and employment.

These fundamental rights, along with other provisions in the Constitution of Pakistan, form the basis for the protection of individual freedoms and the

promotion of justice and equality within the country. They are essential for ensuring a just and democratic society where the rights and dignity of all citizens are respected.

Overview of Principles of Policy (Articles 29-40)

The Principles of Policy, outlined in Articles 29 to 40 of the Constitution of Pakistan, provide a framework for the guidance and objectives of the state. These principles serve as a set of directives for the government and institutions to follow in the interest of achieving certain goals and values. Here is an overview of some key aspects of the Principles of Policy in the Constitution of Pakistan:

- **Islamic Principles (Article 31):** These principles highlight that the state shall enable the Muslims of Pakistan to live their lives in accordance with the teachings and requirements of Islam, emphasizing social justice, economic well-being, and individual and collective welfare.
- **Welfare of the People (Article 33):** The state is mandated to protect and promote the well-being of the people, including ensuring food, clothing, housing, education, and medical relief for all citizens, irrespective of their means.
- **Promotion of Social Justice (Article 34):** The state is directed to ensure social, economic, and political justice for all citizens. It is required to remove social and economic disparities and work towards improving the standard of living of the people.
- **Economic Protection of Minorities (Article 36):** The Principles of Policy emphasize the protection of the rights and interests of religious and ethnic minorities in Pakistan.
- **Well-Being (Article 35):** These principles lay out the need for economic stability and security. The state is tasked with promoting a just economic

system that ensures the well-being of the people, including equitable distribution of wealth.

- **Protection of Labor (Article 37):** The state is required to ensure the rights of workers and laborers, including fair wages, humane conditions of work, and social and economic justice for workers.
- **Health and Education (Article 38):** The state is directed to provide adequate healthcare and educational opportunities, including free and compulsory education for children aged 5 to 16.
- **Provision of Housing (Article 38-A):** The Principles of Policy recognize the importance of housing and housing facilities for the people and encourage the state to facilitate this.
- **Participation of Women in Public Life (Article 34):** These principles emphasize that women should be given equal opportunities for participation in all spheres of national life.
- **Protection of the Family (Article 37):** The state is directed to protect and strengthen the family as a fundamental unit of society.
- **Promotion of Local Government (Article 32):** The Principles of Policy encourage the establishment and strengthening of local government institutions.

These Principles of Policy serve as a set of objectives and guidelines for the state and its institutions to follow in governing Pakistan. While they are not legally enforceable, they provide a vision for the direction that the country should take in terms of governance, social justice, and the well-being of its citizens. They reflect the aspirations and values of the nation and are intended to guide policymaking and government actions.

Responsibilities of Pakistani Citizens (Article 5)

Article 5 of the Constitution of Pakistan, 1973, outlines the responsibilities of Pakistani citizens. Here's the text of Article 5:

"Loyalty to State and Obedience to Constitution and Law: Loyalty to the State is the basic duty of every citizen. Obedience to the Constitution and law is the inviolable obligation of every citizen wherever he may be and of every other person for the time being within Pakistan."

In simple terms, this article highlights the following responsibilities for Pakistani citizens:

- ✓ **Loyalty to the State:** Pakistani citizens should be loyal and devoted to the country.
- ✓ **Obedience to the Constitution and Law:** Citizens must obey the Constitution and laws of Pakistan. This means following the rules and regulations set by the government.
- ✓ **Safeguarding the State:** It's the responsibility of citizens to protect the sovereignty, integrity, and security of Pakistan.
- ✓ **Defending Pakistan:** If needed, citizens should be prepared to defend Pakistan against external threats.
- ✓ **Promoting the Well-being of the People:** Citizens should work for the well-being and prosperity of fellow Pakistanis and contribute to the nation's progress.
- ✓ **Upholding Public Interest:** Individuals should act in a way that serves the greater good and public interest.
- ✓ **Preserving Cultural and Historical Heritage:** It's important to protect and preserve the cultural and historical heritage of Pakistan.

These responsibilities in Article 5 emphasize the importance of loyalty, lawfulness, and active participation in safeguarding and improving Pakistan for its citizens

6. CONSTITUTIONAL AMENDMENTS

Procedures for Amending the Constitution of Pakistan

Procedures for Amending the Constitution of Pakistan are as following:

- **Proposal:** A change to the constitution can be suggested in the National Assembly or the Senate.
- **Two-Thirds Majority:** The proposal needs a two-thirds majority vote in the house where it is introduced.
- **Joint Sitting:** If the proposal passes in one house but not the other, both houses can hold a joint sitting where a two-thirds majority is required.
- **Presidential Approval:** The President must sign off on the amendment.
- **Supreme Court Review:** The President can ask the Supreme Court to check if the amendment follows the constitution's basic principles.
- **Amendment Becomes Law:** If the Supreme Court agrees or doesn't respond within a certain time, the amendment becomes part of the constitution.

These are the simplified steps for amending the constitution of Pakistan. Keep in mind that constitutional amendments are a complex process and may involve detailed legal and parliamentary procedures.

Notable Constitutional Amendments and their Implications

8th Amendment (1985):

Implication: Increased presidential powers.

Result: The President gained authority to dismiss the Prime Minister and dissolve the National Assembly.

18th Amendment (2010):

Implication: Increased provincial autonomy.

Result: More power and resources were devolved to the provinces, enhancing their control over education, health, and other areas.

21st Amendment (2015):

Implication: Established military courts for terrorism cases.

Result: Military courts were set up to expedite trials of terrorism suspects, bypassing the regular judicial process.

22nd Amendment (2016):

Implication: Revised age limit for election to various offices.

Result: Raised the minimum age for election as the President from 45 to 55 and as the Prime Minister from 25 to 35.

25th Amendment (2018):

Implication: Merged tribal areas with Khyber Pakhtunkhwa province.

Result: FATA (Federally Administered Tribal Areas) was merged with Khyber Pakhtunkhwa, granting its residents full citizenship rights.

These amendments have had significant impacts on the political and administrative landscape of Pakistan, affecting the balance of power and the rights of its citizens.